

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

CHRISTOPHER LLEWELLYN, DAVID TUCKER  
And CYPRIAN SMITH,

Plaintiff,

CV 10-0087 (ENV) (LB)

-VS-

THE CITY OF NEW YORK, POLICE COMMISSIONER  
RAYMOND W. KELLY, DETECTIVE BRIAN WOOD,  
SHIELD # 5728, SERGEANT JAMES CAHILL, SHIELD  
# 220 and TAX ID # 901263, DETECTIVE JELSON GOYCO,  
TAX ID #926897, DETECTIVE KATHLEEN GRANT, TAX  
ID # 917714, DETECTIVE MATTHEW FRANCIS, TAX ID #  
925310, DETECTIVE DEMOS MARINAKOS, TAX ID #  
901910, POLICE OFFICER JENNIFER LAVELLE, TAX ID #  
933921, UNDERCOVER OFFICER C092, UNDERCOVER  
OFFICER C081 UNDERCOVER OFFICER C062 and  
POLICE OFFICER JOHN DOE, Individually, who was each  
involved in the incident resulting in plaintiffs' false arrest,  
search, seizure, detention and/or injuries.

**AMENDED COMPLAINT  
AND JURY DEMAND**

Defendants.

**COMPLAINT**

**PRELIMINARY STATEMENT**

1. This is an action for money damages brought pursuant to 42 U.S.C. Sections 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution, and under the common law of the State of New York, against the City of New York, Detective Brian Wood, Sergeant James Cahill, Detective Jelson Goyco, Detective Kathleen Grant, Detective Matthew Francis, Detective Demos Marinakos, Police Officer Jennifer Lavelle, Undercover Officer C092, Undercover Officer C081, Undercover Officer C062 and Police Officer John Doe, individually, all being police officers employed by the New York City Police Department, in their individual capacities and against Police Commissioner Raymond W. Kelly. Jurisdiction is base upon 28 U.S.C. Sections 1331 and 1343, and on the pendent jurisdiction of this Court to entertain claims arising

under state law.

2. The amount in controversy exceeds \$150,000.00 excluding interest and costs.

3. Venue is laid within the United States District Court for the Eastern District of New York in that Defendant City of New York is located within, and a substantial part of the events giving rise to the claim occurred within the boundary of the Eastern District of New York.

4. It is alleged that on June 19, 2009, the individually named police officer defendants, all employed by the New York City Police Department (“NYPD”), acting under color of state law, intentionally and willfully subjected plaintiffs, CHRISTOPHER LLEWELLYN, DAVID TUCKER and CYPRIAN SMITH, to, *inter alia*, false arrest, false imprisonment, excessive force and malicious prosecution upon making an unlawful and warrantless search and seizure of the person and belongings of plaintiffs. These actions violated plaintiffs’ rights under the Fourth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the NYPD.

5. Plaintiffs seek monetary damages (special, compensatory and punitive) against defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

### **PARTIES**

6. CHRISTOPHER LLEWELLYN, DAVID TUCKER and CYPRIAN SMITH (“plaintiffs”), were at all material times, all of full age, residents of the State of New York, and United States citizens.

7. At all times relevant to this complaint, all defendants named herein were duly appointed and acting officers and entities of the NYPD, acting under color of law, to wit: under color of statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

8. Detective Brian Wood (“Wood”), Shield Number 5728, Sergeant James Cahill, (“Cahill”) Shield Number 220, Detective Jelson Goyco (“Goyco”), Tax ID# 926897, Detective Kathleen Grant (“Grant”), Tax ID#917714, Detective Matthew Francis (“Francis”), Tax ID# 925310, Detective Demos Marinakos (“Marinakos”), Tax ID# 901910, Police Officer Jennifer

Lavelle (“Lavelle”), Tax ID# 933921, Undercover Officer C092, Undercover Officer C081, Undercover Officer C062 and Police Officer John Doe, at all times relevant were New York City Police Officers (or detectives) of the New York City Police Department. They are each sued in their individual and official capacities as a result either of their actions at the scene of the incident giving rise to plaintiffs’ arrests, or, in their capacity as policymakers with respect to training, supervision and discipline of police officers under their command.

9. The City of New York (“The City”) is a municipal corporation organized under the laws of the State of New York.

10. New York Police Commissioner Raymond Kelly (“The Commissioner”) was at all times relevant the Commissioner of the New York City Police Department, and, as such, was a policymaker with respect to training, supervision and discipline of NYPD officers, including the individual defendants. The Commissioner is being sued both in his individual and official capacities.

11. The NYPD is a municipal corporation and the public employer of the said officers.

### **NOTICE OF CLAIM**

12. Within 90 days of the events in question, plaintiffs filed a written Notice of Claim with the New York City Office of the Comptroller. This matter has not been settled or otherwise disposed of.

### **FACTS**

13. On or about June 19, 2009, at approximately 8:00 p.m, the three named plaintiffs were lawfully congregated in a public place on or near 525 Thatford Avenue, Brooklyn, New York.

14. At that time and location, the three men were socializing and talking. At that time and location, approximately three unmarked police vehicles approached the place where the three were standing.

15. Approximately eight police officers jumped out of the three police vehicles referenced above and commanded that the plaintiffs place their hands above their heads. One or

more police officers then directed the plaintiffs to walk to a brick fence located in front of 525 Thatford Avenue.

16. Plaintiffs were then ordered to place their faces against this brick fence. The police then searched each plaintiff. They searched each plaintiff without probable cause and without plaintiffs' consent or permission.

17. The police recovered from each plaintiff only lawful property: keys, wallets and cell phones. No contraband was recovered from any of the plaintiffs.

18. The police then placed the three plaintiffs in handcuffs. The police gave no explanation for their conduct other than to state that they did so out of a concern "for our safety and your safety." Yet there was no indication that any of the plaintiffs were in any danger at the time the police acted in the manner described herein.

19. Plaintiff David Tucker asked the police for an explanation as to why the plaintiffs were being handcuffed and arrested. The police replied to him that they were conducting an investigation.

20. All police conduct described herein was managed, directed and supervised by Detective Wood of Brooklyn North Narcotics Division ("BNND") and Sergeant Cahill of BNND. Detective Wood, *inter alia*, ordered the other police officers at the scene to arrest, handcuff and transport the plaintiffs. The plaintiffs were then transported to the 75<sup>th</sup> precinct. Detective Goyco, Detective Grant, Detective Francis, Detective Marinakos and Police Officer Lavelle each took part and otherwise assisted Wood and Cahill in the unlawful apprehending, arresting, transporting, processing incarcerating and subsequent strip-searching of the three plaintiffs. Upon information and belief, each named police officer were members of a tactical team seeking to recover contraband through a series of undercover narcotic operations whereby it was scripted that Sgt. Cahill, Detective Wood and Police Officer Lavelle were designated "Team Leaders" all seated in one police vehicle; Detective Goyco and Detective Grant followed in a separate vehicle; and Detective Francis and Detective Marinakos operated a prisoner van. Upon information and belief, Undercover Officer C092, Undercover Officer C081 and Undercover Officer C062 were part of this same tactical team assigned by the team as civilian actors attempting to purchase narcotics in different locations or "sets" throughout Brooklyn.

21. At the 75<sup>th</sup> precinct following their arrest and transport, plaintiff Tucker specifically inquired with defendant Cahill as to why he and the other plaintiffs were arrested. Cahill failed to offer or provide any explanation for defendants' actions in making their unlawful stop, approach and arrest of plaintiffs.

22. At the 75<sup>th</sup> precinct, Police Officer John Doe strip-searched the three plaintiffs without probable cause. Upon information and belief, Police Officer John Doe was directed to do so by defendants Detective Wood and Sergeant Cahill. No contraband or unlawful items were recovered from any of the three plaintiffs.

23. Plaintiffs remained handcuffed and otherwise detained at all times until they were each respectively released from custody. Plaintiffs Christopher Llewellyn and David Tucker were released directly from Central Booking upon the determination by the Kings County District Attorney's office to decline to criminally prosecute these two plaintiffs. In total, these two plaintiffs were incarcerated for approximately 27 hours each before being released from custody. Plaintiff Cyprian Smith was at first charged with certain criminal offenses, to wit: Criminal Possession of a Controlled Substance in the Third Degree (a Class "B" felony), Criminal Sale of a Controlled Substance in the Third Degree (a Class "B" felony), Criminal Possession of a Controlled Substance in the Seventh Degree (a Class "A" Misdemeanor) and Criminal Possession of Marijuana (a Violation). Plaintiff Smith remained incarcerated for approximately 39 hours before being 'Released on Recognizance' following his Criminal Court arraignment.

24. On August 4, 2009, plaintiff Smith's criminal matter entitled People v. Cyprian Smith, Kings County Docket Number 2009KN048556, was dismissed in Part AP1 of Kings County Criminal Court "in the interest of justice."

25. The actions of the defendants were without probable cause. No warrants were ever produced by the police at any time. The defendant police officers named above each seized, interrogated and searched the plaintiff and his person without a warrant.

26. The warrantless search and seizure was illegal as the Fourth Amendment of the United States Constitution protects *inter alia*, individuals from both unlawful search and seizures as well as against the more traditional seizure of "papers and effects."

27. The plaintiffs were each arrested and detained without probable cause or legal justification.

28. At no time during the events described above were plaintiffs intoxicated, incapacitated, a threat to the safety of themselves or others, or disorderly. Plaintiffs had committed no criminal offenses.

29. The defendant police officers had no warrant for the arrest of the plaintiffs, no probable cause for the arrest of the plaintiffs, and no legal cause or excuse to seize the person of the plaintiffs.

30. Plaintiffs were arbitrarily and falsely detained.

31. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

32. As a direct and proximate result of the said acts of the defendant police officers, the plaintiffs suffered the following injuries and damages:

- a. Violation of their constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;
- b. Loss of their physical liberty;
- c. Physical or mental anguish, pain and suffering and/or emotional trauma and suffering.

33. The actions of the defendant Officers violated the long-established and well-settled federal constitutional right of plaintiffs, to wit: the freedom from the unreasonable seizure of their person.

### **COUNT I**

#### **42 U.S.C. Section 1983 Against Individual Defendant NYPD Officers.**

34. Paragraphs 1 through 33 are incorporated herein by reference as though fully set

forth. 35. Plaintiffs' claim damages for the injuries set forth above under 42 U.S.C. Section 1983 against defendants City of New York, Police Commissioner Raymond W. Kelly, New York Police Department Detective Brian Wood, Sergeant James Cahill, Detective Jelson Goyco, Detective Kathleen Grant, Detective Matthew Francis, Detective Demos Marinakos, Police Officer Jennifer Lavelle, Undercover Officer C092, Undercover Officer C081, Undercover Officer C062 and Police Officer John Doe who all engaged in the actions and conduct alleged herein in their official capacities as NYPD police officers and under color and authority of federal and state law, regulation, ordinance, custom and usage, for violation of plaintiffs' constitutional rights under color of law. Each acted within the course and scope of their employment with the NYPD of defendant City of New York.

36. That such actions served to deprive plaintiff of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the U.S. Constitution and Section 1983 of 42 U.S.C. In particular, the plaintiff was deprived of his right to due process of law, of their right to happiness and to liberty.

37. Defendants New York City Police Officers named not only engaged in intentional conduct, but they did so either with the intent to violate the plaintiffs' civil rights, or with a reckless disregard for whether defendants' conduct would violate such rights.

38. Plaintiffs each have been damaged as a result of defendants' wrongful acts in the amount of Five Million Dollars.

## **COUNT II**

### **False Arrest and Illegal Imprisonment Against Individual Defendant NYPD Officers.**

39. Paragraphs 1 through 38 are incorporated herein by reference as though fully set forth hereinafter at length.

40. Defendant NYPD Police Officers named and unnamed herein illegally arrested and illegally imprisoned plaintiffs. In doing so, these officers not only engaged in intentional conduct, but they did so either with the intent to violate the plaintiffs' federal rights, or with a reckless disregard for whether defendants' conduct would violate such rights.

41. As a result of this false arrest and illegal imprisonment, the plaintiffs each suffered

the damages as aforesaid in the amount of Five Million Dollars.

### **COUNT III**

#### **Assault and Battery against Defendants, et al.**

42. Paragraphs 1 through 41 are incorporated by reference as though fully set forth hereinafter at length.

43. At the above time and place, defendants Detective Brian Wood, Sergeant James Cahill and one or more of the other police officers, either named or unnamed, and City of New York, through the actions of its agents, employees and police officers at the scene committed assault and battery (all within the course and scope of their employment) by subjecting plaintiff to harmful and offensive bodily contact with the intent to do so in the course of strip-searching each plaintiff.

44. At the above time and place, plaintiffs were consciously aware of this contact, did not consent to it, and were otherwise harmed by it.

45. Such harmful and offensive contact was unlawful, excessive, and was without legal justification or other privilege.

46. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive them of such rights and are liable to plaintiffs under 42 USC Section 1983, New York State Common Law and the New York State Constitution.

47. By reason of the foregoing, plaintiffs each sustained serious physical/emotional injuries and conscious pain and suffering herein which have resulted, or may foreseeably result, in certain health and medical care, and claims damages in the sum of Five Million Dollars.

### **COUNT IV**

#### **42 U.S.C. Section 1983 Against Defendants**

48. Paragraphs 1 through 47 are incorporated herein by reference as though fully set forth hereinafter at length.



49. Prior to June 19, 2009, the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of plaintiffs' rights.

50. It was the policy and/or custom of the NYPD to inadequately supervise, train, discipline, sanction or otherwise direct its police officers, including the defendant officers named in this case, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The NYPD did not require appropriate in-service training of officers on the subject of police misconduct, nor did it take measures to prevent such constitutional abuses such as described herein.

51. As a result of the NYPD's developed policies and customs, police officers of the NYPD, including the defendant officers named in this case, believed that their actions would not be properly monitored by supervisory officers, and that misconduct would not be investigated or sanctioned, but would be tolerated.

52. The above-mentioned policies, practices and customs demonstrated a deliberate indifference on the part of policymakers of the NYPD. Said policies, practices and customs have served to encourage and sanction the police officers' unlawful conduct described above, such conduct having adversely impacted upon the constitutional rights of citizens, and were the cause of the violations of the plaintiffs' rights alleged herein on June 19, 2009.

53. Plaintiffs have been damaged as a result of defendants' wrongful acts in the amount of Five Million Dollars.

WHEREFORE, the plaintiffs demand judgment against the defendants, jointly and severally, as follows:

- a. In favor of each of the plaintiffs in the amount of Five Million Dollars for each of plaintiff's Causes of Action;
- b. Awarding costs and disbursements of this action to the plaintiffs;
- c. Awarding reasonable attorney fees of this action to the plaintiffs;
- d. Awarding plaintiffs punitive damages in the amount of Five Million Dollars for each of plaintiffs' Causes of Action; and
- e. Awarding such other and further relief as this Court may deem appropriate,

just and proper.

**JURY DEMAND**

The plaintiffs each hereby demand a jury trial.

Dated: Brooklyn, New York  
June 11, 2010

THE PLAINTIFFS,  
BY

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TO:

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100 Church Street, 4<sup>th</sup> Floor  
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Police Commissioner Raymond W. Kelly  
1 Police Plaza, Room 1406  
New York, New York 10006

Detective Brian Wood, Shield #5728  
BNND  
245 Glenmore Avenue  
Brooklyn, New York 11207-3308

Sergeant James Cahill, Shield # 220  
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245 Glenmore Avenue  
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Detective Kathleen Grant, Tax ID# 917714  
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Detective Matthew Francis, Tax ID# 925310  
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Detective Demos Marinakos, Tax ID# 901910  
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